

5	Truong vs. Bass 30-2024-01425634	<u>Motion for Leave to Amend</u> Plaintiff Hien T. Ngoc Truong's Motion for Leave to File the First Amended Complaint is GRANTED. Plaintiff Tracey Truong Nguyen's Motion for Leave to File the First Amended Complaint is DENIED. Plaintiff Hien T. Ngoc Truong is ORDERED, within 10 days of this order, to file and serve the First Amended Complaint attached as Exhibit 1 to the motion, except that Tracey Truong Nguyen shall be removed as a Plaintiff. <u>Pending Motion</u> Plaintiffs Hien T. Ngoc Truong and Tracey Truong Nguyen move for leave to file a First Amended Complaint. <u>Standard for Leave to Amend (Upon Motion of a Party)</u> The Civil Procedure Code provides that: The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Code Civ. Proc., § 473, subd. (a)(1).) Leave to amend should be granted liberally at all stages of the proceedings in order to accomplish substantial justice for both parties and to resolve cases on their merits. (See <i>Hirsa v. Superior Court</i> (1981) 118 Cal.App.3d 486, 488-489; <i>IMO Development Corp. v. Dow Corning</i> (1982) 135 Cal.App.3d 451, 461.)

	As the Court of Appeal has explained: [T]rial courts should be guided by two general principles: (1) whether facts or legal theories are being changed and (2) whether the opposing party will be prejudiced by the proposed amendment. Frequently, each principle represents a different side of the same coin: If new facts are being alleged, prejudice may easily result because of the inability of the other party to investigate the validity of the factual allegations while engaged in trial or to call rebuttal witnesses. If the same set of facts supports merely a different theory – for example, an easement as opposed to a fee – no prejudice can result. (<i>City of Stanton v. Cox</i> (1989) 207 Cal.App.3d 1557, 1563.) With respect to the first requirement, “[t]he basic rule applicable to amendments to conform to proof is that the amended pleading must be based upon the same general set of facts as those upon which the cause of action or defense as originally pleaded was grounded.” (<i>Union Bank v. Wendland</i> (1976) 54 Cal.App.3d 393, 400-401.) In other words, “[t]he power to permit amendments is interpreted very liberally as long as the plaintiff does not attempt to state facts which give rise to a wholly distinct and different legal obligation against the defendant.” (<i>Herrera v. Superior Court</i> (1984) 158 Cal.App.3d 255, 259.) With respect to the second requirement, prejudice that may support denying amendment includes “delay in trial, loss of critical evidence, or added costs of preparation.” (<i>Solit v. Tokai Bank, Ltd. New York Branch</i> (1999) 68 Cal.App.4th 1435, 1448.) The trial court has wide discretion in determining whether to allow amendment, but “the appropriate exercise of that discretion requires the trial court to consider a number of factors: <i>‘including the conduct of the moving party and the belated presentation of the amendment.’</i>” (<i>Leader v. Health Ind. of America, Inc.</i> (2001) 89 Cal.App.4th 603, 613, quoting <i>Bedolla v. Logan & Frazer</i> (1975) 52 Cal.App.3d 118, 135-136, italics original.)
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6	Skillset Group, LLC vs. Samuel Hale, LLC 30-2026-01542587	<u>Motion for Temporary Restraining Order and Order to Show Cause</u> Plaintiffs Skillset Group, LLC and Skillset Group, Inc.'s motion for Temporary Restraining Order and Order to Show Cause why a Preliminary Injunction